



NIXON PEABODY LLP
ATTORNEYS AT LAW

NIXONPEABODY.COM
@NIXONPEABODYLLP

Eric C. Jeffrey
Counsel
ejeffery@nixonpeabody.com

Nixon Peabody LLP
799 9th Street NW
Suite 500
Washington, DC 20001-4501
202-585-8000

January 24, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Petition for Leave to Supplement Exceptions of Respondents' Counsel to the Presiding Officer's September 16 Decision Not to Consider Disciplinary Action Against Complainants' Counsel

If you have any questions, please do not hesitate to contact me.

Best regards,



Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With
DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS OF RESPONDENTS'
COUNSEL TO THE PRESIDING OFFICER'S SEPTEMBER 16 DECISION NOT
TO CONSIDER DISCIPLINARY ACTION AGAINST COMPLAINANTS' COUNSEL**

On October, 18, 2016, the undersigned, Counsel for Respondents Empire United Lines and Michael Hitrinov (collectively Empire), filed exceptions to the September 16, 2016 decision of the Presiding Officer denying on internal FMC procedural grounds the undersigned's motion requesting that the Presiding Officer commence a disciplinary proceeding regarding substantial ethical violations by Counsel for Complainants. Pursuant to FMC Rule 230(d), 46 C.F.R. 502.230(d), the undersigned now requests leave of the Commission to supplement the record with more recent filings and communications in the above-captioned proceeding showing that Complainants' Counsel have continued their violations, despite the pendency of this matter

before the Commissioners.¹ In particular, Complainants' Counsel have continued their pattern of misrepresentation to the Presiding Officer, and their repeated acts of extreme incivility.

1. On January 15, 2017, Complainants Counsel filed with the Presiding Officer a document denominated as a "Status Report." [Appendix A (excluding appendices to the report).] Instead of actually reporting on status, however, the document simply regurgitated prior assertions by Counsel, made arguments based on irrelevant developments in a federal court case involving the same four cars allegedly at issue here, and requested relief from the Presiding Officer. Counsel's misuse of a status report is not important. Rather, it is the feckless factual misrepresentations made by Counsel that should interest the Commissioners.

On page two of the status report, Counsel for Complainants repeat the previously-corrected canard that the undersigned authored documents submitted to the Presiding Officer by Movant-for Intervention Sergey Kapustin (it "continues to be complainants' contention that documents filed and/or docketed with the Commission in Kapustin's name were in reality authored by respondents' counsel herein, Eric Jeffrey, Esq. ("Jeffrey")). As Counsel have been previously advised and are well aware, the undersigned: (i) has not authored or otherwise prepared a single word of any filing made by Mr. Kapustin; (ii) does not know Mr. Kapustin, and (iii) has never met or communicated with Mr. Kapustin in any manner or form, except to serve

¹ The undersigned anticipates that Complainants' Counsel will respond with their own catalogue of asserted wrongdoings allegedly committed by me. Apart from the lack of any merit to Counsel's cavils, they are wholly irrelevant. My actions are not before the Commission, as Complainants' Counsel did not file any Exceptions. And to the extent that Counsel seek to exonerate themselves by attributing misdeeds to me, they are simply asserting that two wrongs do make a right.

on him without comment one or two filings by Respondents relating to Mr. Kapustin's Motion to Intervene.²

2. On January 18, 2017, Complainants' Counsel filed a response to a joint motion by Respondents and the undersigned requesting an extension of time regarding a motion pending before the Presiding Officer.³ [Appendix B (not including the Appendices to the response).] Counsel there made multiple false representations of fact, only a few of which will be detailed below.

Most strikingly, Counsel claimed that the undersigned had not in fact authorized filing of the joint motion. See pp. 4 ("alleged 'authority' of Jeffrey); 11 ("alleged authority extended by

² As previously communicated to the Presiding Officer and Complainants' Counsel in Respondents' August 22, 2016 Response to Complainants' Motion:

"As to collusion with Mr. Kapustin, I can categorically state that I:

- Have never prepared or been involved in the preparation of any document filed by Mr. Kapustin. Nor have I even seen any document filed by Mr. Kapustin prior to receipt as an email copy recipient of the filing to the Commission, on which Complainants' Counsel were also copied.
- Have never communicated with Mr. Kapustin orally or in writing, except to the extent that he was a copy recipient on one or two filings I submitted to the FMC relating to Mr. Kapustin, or I was a copy recipient on filings made by Mr. Kapustin, on all of which Complainants' Counsel were also copied.
- Did not send to Mr. Kapustin Complainants' Response to his Motion to Intervene, nor do I have any idea who did. I note, however, that as I understand the FMC Rules, Mr. Kapustin *should* have been served by Complainants with a copy of that Response."

See also Respondents' September 1, 2016 Conditional Response to Complainants' Unauthorized Reply on Motion to File Sur-Reply.

³ As background not relevant to the instant ethical issue, the undersigned and Respondents are at odds regarding payment of compensation. The undersigned filed a Motion to Withdraw, but Respondents and the undersigned have asked the Presiding Officer to defer action on the Motion while attempts at resolution are made.

Jeffrey”). These false assertions were made even though the undersigned had specifically told Counsel that I authorized the filing. [Appendix C.]⁴ On January 14, 2017, I sent an email to Counsel from Shanghai, and asked them to retract the mis-statement. [Appendix D.] They declined by email dated January 19, 2017.⁵ [Appendix E.]

The response also reiterated various other misrepresentations previously identified. For example, Counsel repeated the debunked “alternative facts” that the undersigned was no longer in communication with Respondents. See, e.g., pp. 2 (“professing an inability to communicate with his own client”); 4 (“Jeffrey candidly admits as [sic] to having had *no contact whatsoever* with is client for a period of *over four (4) months*”) (italics in original); 6 (“Jeffrey professes to have had *no communication whatsoever* [with Respondents] for the past four (4) months”). This assertion, first made by Counsel several months ago, is based on nothing but air, and Counsel cite nothing for the claim other than their own ipse dixit. Thus, even if the false statement had not already been corrected, Counsel’s statement would clearly constitute nothing less than a reckless disregard of the truth.

But the falsification was in fact corrected. On September 14, 2016, for example, the undersigned explained:

“Counsel assert . . . that the undersigned ‘purports to have ceased communications’ with his clients. Again, that fanciful assertion is simply false, and based on nothing. What I said in my motion . . . is that my clients did not respond to recent emails on the specific matter of unpaid invoices.” Response of Respondents’ Counsel to Complainants’ Unsupported Cross-Motion for an Order to Show Cause.

⁴ As background, because the undersigned was about to leave the country for 10 days, I authorized the Respondents to file a joint motion including my name. Respondents initially e-filed the motion, but forgot to attach it to their email. Counsel for Complainants inquired about the missing motion. As shown in Appendix C, I explained to Counsel that I was on the other side of the world, but had authorized Respondents to file the motion. I notified Respondents about the missing attachment, and it was properly submitted.

⁵ As discussed in the Exceptions, such refusal to correct a falsehood violates the Rules of Ethics.

Complainants' Counsel have thus jumped from the realm of willful disregard to the arena of deliberate deception.

Likewise, Counsel for Complainants insist, with no factual basis, that the undersigned and Respondents are feigning their attempt to work out the dispute over compensation. See, e.g., 8 ("it requires a 'willing suspension of disbelief' for the Presiding Officer to reasonably conclude that the representation that Hitrinov and Jeffrey have been working industriously to rekindle their affections for one another, as [sic] anything but a complete sham and a deceitful act of fraud").

Although attorney-client privilege precludes me from providing emails and summaries of phone calls between the undersigned and Respondents, suffice it to say that they have been numerous and voluminous. Moreover, both Mr. Hitrinov and I have been out of town or country a good part of the last few months, including my just ended trip to Asia. We have already, since my return to the office yesterday, re-started such discussions.

The final major misrepresentation (there are additional minor infractions) is the repeated false assertion, addressed briefly in the Exceptions (p. 20 n.20), that the undersigned improperly used a visit to his father's grave as a partial reason for requesting a brief extension of time. As explained in Respondents' September 14, 2016 response to a motion filed by Complainants where that same sham assertion was made:

"Even apart from Mr. Nussbaum's failure to provide one scrap of evidence for his imaginary complaint, the assertion wholly ignores the actual request for extension itself. In that motion, family obligations were only a small, but true, part of the reasons given. As there stated, the undersigned was on a combined business/family trip, followed by obligations to the DOJ on an unrelated matter. Here, to the extent permissible given confidentiality requirements, is my schedule:

- Wednesday, July 27 -- Meeting with Director and Deputy Director of FMC Bureau of Enforcement/travel to New Jersey/Client Meeting
- Thursday, July 28 -- Client Meetings/travel to New York for dinner meeting with client/travel back to New Jersey
- Friday, July 29 -- Travel to my parents' home/visit with my step-mother to my father's grave/review my father's will (of which I am executor) and other matters regarding the estate with my step-mother
- Saturday, July 30 – Travel back to Washington, DC
- Sunday, July 31 – Meeting at NP office resulting from obligation to DOJ
- Monday, August 1 – Meeting at DOJ in Washington, D.C.
- Tuesday, August 2 – Meeting with DOJ in Baltimore, MD.”

Complainants' re-telling of this fable demonstrates only their continuing lack of regard for the FMC's Rules of Ethics.

3. The above filings and communications also show that Counsel's extreme incivility has continued unabashed. There is no reason to address this in any detail, but it is worth noting a few lowlights:

- Appendix B p. 4 – “respondents by their counsel, Jeffrey have for the past year engaged in every possible scam, scheme, contrivance, and endless frivolous motion practice.”
- Id. p. 5 – “It is difficult if not impossible to describe the breathtaking arrogance and megalomaniacal self-centeredness of respondents and their counsel.”
- Id. p. 6 – “Jeffrey and Hitrinov continue to perpetrate an attempted fraud upon the Commission.”
- Id. p. 7 – “In a shocking example of ‘sharp practice’ heretofore unprecedented in the history of the Commission and any cases emanating therefrom, and preeminent among Jeffrey's many oddities, eccentricities, and inventing of law out of whole cloth, is Jeffrey's latest foray”

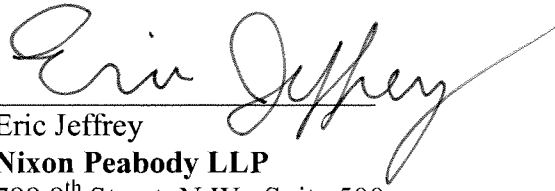
- Id. – “with unmitigated gall and unbridled temerity, Jeffrey now seeks leave.”
- Id. p. 8 – “Jeffrey and Hitrinov continue to seek to ‘game’ the Presiding Officer and the Commission upon incredible, unbelievable, and undeniably false pretenses.”
- Id. p. 9 – “the foregoing proposal obviate[s] the need to rewrite the RPP ‘in Jeffrey’s own graven image.’”
- Id. – “It is difficult if not impossible to assemble verbiage which fairly and accurately describes the breathtaking arrogance of Jeffrey and Hitrinov.”

The issue before the Commission is whether it wishes to allow, and thereby encourage, such a level of discourse in proceedings before it.

CONCLUSION

For the foregoing reasons, Counsel for Respondents requests that the Commission grant leave to supplement the record and take the attachments into account in reviewing the Exceptions.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Eric Jeffrey", is written over a horizontal line.

Eric Jeffrey
Nixon Peabody LLP
799 9th Street, N.W., Suite 500
Washington, D.C. 20001
202-585-8000

Appendix A

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Presiding Officer aware of changes in status regarding the above captioned matter.

As of the time of this writing there have been several significant developments which have occurred since complainants' last Status Report docketed on November 22, 2016.

The first issue that complainants wish to bring to the Presiding Officer's attention involves non-party, Sergey Kapustin ("Kapustin"), whom to date has sought, *inter alia* to 1) intervene in this matter; 2) have complainants' counsel 'disqualified' from representing the complainants

herein; 3) to strike and/or ‘seal’ certain filings and documents in this matter; and 4) generally interfere with the orderly and expeditious litigation of this matter.

The Presiding Officer is further respectfully reminded that for a variety of reasons, including but not limited to the fact that Kapustin upon information and belief, does not read or write in English, together with the fact that as set forth below, Kapustin has no monies or funds with which to hire or retain other counsel it is, has been, and continues to be complainants’ contention that documents filed and/or docketed with the Commission in Kapustin’s name were in reality authored by respondents’ counsel herein, Eric Jeffrey, Esq. (“Jeffrey”) together with his “coordinating counsel”, Jon Werner, Esq. (“Werner”) who have previously colluded with Kapustin by providing him with documents for Kapustin’s review in the case at bar.

The Presiding Officer is further asked to note Jeffrey’s having joined in various “arguments” espoused by Kapustin; having vaunted (if not vouched for) Kapustin’s various contentions; and having proffered documents in support of Kapustin’s “arguments” which Kapustin did not annex to his own motion papers and filings with the Commission.

Correspondingly, the Presiding Officer is additionally asked to note Kapustin’s long association with respondents’ coordinating counsel, Werner, inclusive of Werner’s well documented open solicitation of Kapustin in an unrelated proceeding, while simultaneously representing respondent, Michael Hitrinov, (“Hitrinov”) as an adverse party in the same matter.

On December 22, 2016 the United States District Court for the District of New Jersey, by the Honorable Magistrate Judge Mark Falk, signed a criminal Complaint returned by a Federal Grand Jury against Kapustin alleging wire fraud and attempted wire fraud, a copy of which is annexed hereto as Appendix “1”.

Said criminal Complaint specifically ties respondent, Hitrinov to Kapustin in that Kapustin used Hitrinov's company to ship certain vehicles, the purchase and sale of which were the *res gestae* of the criminal Complaint. Further, the transactions at issue in said case were the same transactions at issue in the instant case now pending before the Presiding Officer. With particular regard to the latter, Appendix "1" reads, in relevant part, as follows:

"Victim 2 has attested that... in December 2012, KAPUSTIN told Victim 2 that the car was in Kotka, Finland but couldn't be released, and Victim 2 was told to call CarCont, Ltd in Kotka for an explanation...CarCont, Ltd. refused to release the car, without significant additional charges...[and that Victim 2 was] unable to determine if his/her car in fact was in Kotka...[and that] Victim 2 sought, but was refused, a refund of the \$22,920 purchase price."

As the Presiding Officer may recall from complainants' original Complaint as well as from numerous other documents and filings in this matter, CarCont Ltd. was the consignee in Kotka Finland to whom the subject vehicles in the case at bar were delivered. As the Presiding Officer may further recall, and as additionally pleaded in complainants' original Complaint, it has been and remains complainants' contention that CarCont Ltd. is owned by respondent, Hitrinov.

As the Presiding Officer may additionally recall from numerous filings and documents in this matter, Kapustin was the alleged owner and/or principal shareholder of several purported entities bearing the name "Global", and who while simultaneously acting in concert with Hitrinov and his company, Empire United Lines Co. Inc. ("EUL") with respect to the criminal enterprise set forth within the criminal complaint had separately brought claims against EUL, which were ultimately assigned to victims of the fraud committed by Kapustin and the Global entities; and whom are now prosecuting the claims previously brought by Kapustin and Global, against EUL. See, Opinion of the Honorable Judge Noel L. Hillman of December 8, 2016, a copy of which is annexed hereto as Appendix "2", in which he opines as follows:

“...through the assignment of the Global entities’ claims against the EUL defendants, the 21 plaintiffs who were victims of Kapustin’s and the Global entities’ fraud are now prosecuting the claims of the Global entities against the EUL defendants.”

CONCLUSION

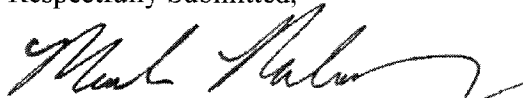
As set forth above, respondent, Hitrinov and his counsel Jeffrey, along with Jeffrey’s “coordinating counsel”, Werner have, by and through their actions, legally and factually “wedded” themselves to Kapustin, who has now been formally indicted as set forth above.

Consequently the foregoing, along with the attachments annexed hereto are respectfully submitted as same reflect a dramatic ‘change in status’ of this case with regard to both respondent, Hitrinov and his counsel, as well as to the several pending motions of non-party, Kapustin so as to inform the Presiding Officer of said change in status as same may reflect upon or be determinative of pending motions now before the Presiding Officer and the Commission herein.

In closing, and as always, complainants thank the Presiding Officer for his many continuing courtesies and considerations in this case.

Dated: January 15, 2017
Brooklyn, New York

Respectfully Submitted,



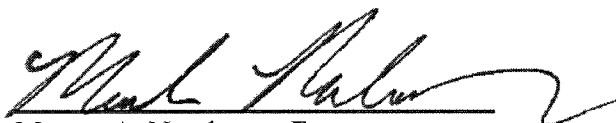
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", with a long, sweeping horizontal stroke extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: January 15, 2017 in Brooklyn, New York.

Appendix B

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS' RESPONSE TO RESPONDENTS' SECOND JOINT MOTION
FOR A FURTHER EXTENSION OF TIME TO WITHDRAW**

Complainants, through their Counsel, Marcus A. Nussbaum, Esq. hereby respond to the second “joint” motion filed by respondents and their counsel, requesting duplicative relief of that previously sought, to wit: a further extension of time for respondents to respond to and oppose the motion for leave to withdraw as counsel for the respondents by Eric C. Jeffrey, Esq. and Nixon Peabody LLP.

RELIEF REQUESTED

Respondents Empire United Lines Co. Inc. (“EUL”) and Michael Hitrinov (“Hitrinov”), both pro se and by their counsel, Eric C. Jeffrey (“Jeffrey”) have, for the second time, “jointly” moved for an Order from the Presiding Officer granting an unprecedented near ninety (90) day

“extension” of respondent Hitrinov’s time within which to respond to Jeffrey’s Motion to Withdraw.

Respondents, having previously “jointly” moved for an Order from the Presiding Officer “waiving” the twin requirements imposed by the Commission’s Rules of Practice and Procedure (“RPP”), to wit: (1) that a request for such an extension on a non-dispositive motion be made on the date that the motion is served; and (2) that the request for such an extension be made seven days prior to the date upon which said filing would otherwise be due, have now, incredulously, sought to file a supposed *second* “joint” motion executed only by respondent, Hitrinov upon alleged “authority” of Jeffrey in a convoluted reverse “power of attorney” which has no basis or support under the law.

As set forth below, respondents’ *second* “joint” motion should be denied in its entirety, with prejudice.

RECENT PROCEDURAL HISTORY

On November 16, 2016 Jeffrey, on behalf of respondents, filed a motion seeking leave for Jeffrey and his firm to withdraw from their representation as counsel for the respondents in this matter. A copy of Jeffrey’s motion is annexed hereto as Appendix “1”.

Thereafter, on November 17, 2016, complainants filed their response to Jeffrey’s motion, opposing the relief requested therein in its entirety. A copy of complainants’ response is annexed hereto as Appendix “2”.

Subsequent thereto, on November 22, 2016 Jeffrey incongruously filed a motion *on behalf of his client with whom Jeffrey had become estranged and adverse*, seeking an extension of time *for his estranged client* to submit a response to Jeffrey’s motion.

It is further significant to note, and otherwise bears mentioning that while professing an inability to communicate with his own client, Jeffrey was apparently entirely unaware that his own

client had abandoned his offices at the address repeatedly referred to in multiple documents relating to this case, as evinced by a Certification executed in an unrelated matter, a copy of which is annexed hereto as Appendix “3”. More egregiously, Jeffrey apparently made *no effort whatsoever* to attempt to contact his client at his residence address despite the fact that respondent, Hitrinov has resided at the same address from the inception of this litigation to the time of this writing.

Following the above, Jeffrey interposed a “motion by email”, which though thoroughly convoluted appears to have requested the unnoticed relief of withdrawing his motion for an extension of time, and seeking advice from the Office of the Secretary as to how he should proceed in connection with withdrawing Jeffrey’s own motion, to be substituted with a “pro se” motion by his client, Hitrinov *whom Jeffrey continues to represent*. It is particularly noteworthy that Jeffrey *strenuously insisted* that his reason for withdrawing the motion for an extension that he had incongruously made on behalf of his then estranged client, Hitrinov (going so far as to confess to a “miscommunication”) was so that his client, Hitrinov could “...file a motion in lieu of the motion that [he] filed today...”. Accordingly, complainants were *shocked* when in lieu of the much vaunted and advertised “individual” motion of Hitrinov, Jeffrey and Hitrinov instead colluded on and produced the “joint” motion now before the Presiding Officer.

Despite Jeffrey’s motion having been electronically filed with both the Office of the Secretary *and* the Presiding Officer, by email of November 23, 2016 Ms. Rachel Dickon from the Office of the Secretary indicated that Jeffrey’s motion had been withdrawn.

Thereafter, and later that same date, Jeffrey and his client, Hitrinov electronically filed their original “joint” motion for an extension of time, to which complainants responded in vehement opposition thereto.

Most recently, Hitrinov (upon alleged “authority” of Jeffrey referenced above) has now filed a *second* motion for an extension which based on its form and content can only be characterized as bizarre. As was done in response to respondents’ first and still pending “joint” motion for an extension of time, complainants vehemently object to respondents’ *second* duplicative filing, both on its merits as well as by reason of having unlawfully and without consent of the Commission or Presiding Officer, attempted to take a “second bite at the apple” seeking identical relief, albeit for a yet greater extension of time.

BRIEF STATEMENT

This matter came under the jurisdiction of the Presiding Officer following filing and service of complainants’ instant Complaint on or about November 12, 2015.

Since then, respondents by their counsel, Jeffrey have for the past year engaged in every possible scam, scheme, contrivance, and endless frivolous motion practice which has resulted in bringing this case to a complete standstill, of which Jeffrey’s pending motion, and the so-called “joint” motion of Jeffrey and his client, Hitrinov are only the most recent example emblematic of same.

In sum, Jeffrey filed a motion for both he and his firm to be given leave to withdraw as counsel for the respondents herein upon ground of Hitrinov allegedly not paying his legal bills. In so doing, Jeffrey candidly admits as to having had *no contact whatsoever* with his client for a period of *over four (4) months*, prior to Hitrinov’s miraculous ‘resurfacing’ within the last forty-eight (48) hours, conspicuously coterminous with complainants’ opposition to Jeffrey’s motion to withdraw, and a separate Status Report sent to the Presiding Officer’s attention, a copy of which is annexed hereto as Appendix “4”.

Throughout this most unfortunate and galactically protracted litigation, Jeffrey has repeatedly not only violated the RPP with impunity, but on several occasions has gone so far as to

attempt to rewrite the RPP to respondents' unfair advantage, of which Jeffrey's latest effort is only the most recent example thereof.

Specifically, Jeffrey has asked the Presiding Officer to *waive* the applicable Rules with regard to the timing of respondents' submissions in order to effectively "stay" this already greatly protracted matter for an additional sixty (60) days for *no good cause shown* and to *no apparent purpose* other than to further unreasonably delay expeditious litigation of this matter beyond the incalculable delays already engendered through Jeffrey's continuing bad faith methods of practice.

As set forth below, it is respectfully submitted that complainants should not be further prejudiced with such unreasonable delay while Jeffrey and his client, Hitrinov attempt to rekindle their legal romance, and that the more appropriate remedy would be for Jeffrey to *withdraw, in toto* his now baseless motion to withdraw as counsel for the respondents, without prejudice and with leave to renew, so that orderly and expeditious litigation of this matter may yet once again ensue.

It is difficult if not impossible to describe the breathtaking arrogance and megalomaniacal self-centeredness of respondents and their counsel who, after conspiring to bring litigation of complainants' instant claims to a grinding halt now have the unmitigated gall and unbridled temerity to yet once again place their own personal convenience and "travel plans" above and beyond even the semblance of an attempt to make the remotest good faith effort at any reasonable pace within which to litigate complainants' instant claims to anything resembling an expeditious conclusion.

Worse (if possible) Hitrinov and Jeffrey continue to seek to create their own law and rules of procedure which directly contravene those by which the Presiding Officer, and indeed the Commission are bound.

Succinctly stated Jeffrey and Hitrinov continue to perpetrate an attempted fraud upon the Commission which has only been furthered by the filing of respondents' latest motion.

ARGUMENT

Standard of Review

RPP 71 reads, in relevant part, as follows:

A response to a non-dispositive motion must be served and filed within 7 days after the date of service of the motion.

RPP 102 reads, in relevant part, as follows:

Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon *a showing of good cause*. Motions must set forth the reasons for the request and be received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where *reasonable grounds* are found for the failure to meet this requirement (emphasis added).

It is respectfully submitted that Jeffrey has abjectly failed to either establish any good cause shown or reasonable grounds for the collective failure of Jeffrey and his client, Hitrinov to meet the requirements of the RPP as set forth above.

Based upon the aforescribed rules, and in that Jeffrey's motion was served on his estranged client, Hitrinov with whom Jeffrey professes to have had *no communication whatsoever* for the past four (4) months, as of November 16, 2016 it was incumbent upon Hitrinov to have requested an extension of time *on the date the motion was served*, and seven (7) days before the scheduled filing date. These things, both Jeffrey and his estranged client, Hitrinov have manifestly *failed* to do. Neither does Jeffrey set forth any good cause shown, reason, or explanation as to why the extension that Jeffrey now "jointly" seeks with his estranged client, Hitrinov was not timely made.

Based upon the foregoing, it is again respectfully submitted that the original “joint” motion of Jeffrey and Hitrinov should be summarily denied as having been made in a grossly untimely fashion.

Respondents’ “Double-teaming”

In a shocking example of ‘sharp practice’ heretofore unprecedented in the history of the Commission and any cases emanating therefrom, and preeminent among Jeffrey’s many oddities, eccentricities, and inventing of law out of whole cloth, is Jeffrey’s latest foray into previously uncharted territory, wherein a party represented by counsel is free to make separate submissions on single issues “jointly” with a party’s counsel amidst claimed disagreements on financial obligations, and professed communication difficulties, now both exposed as being wholly specious and entirely spurious in nature.

Succinctly stated, and with unmitigated gall and unbridled temerity, Jeffrey now seeks leave to have he and his client, Hitrinov “double-team” the Presiding Officer with separate and individual submissions on single extant issues as evinced by Jeffrey’s representation as follows: “Accordingly, *each* of Movants reserves the right to re-open the question of withdrawal and/or move for a stay, if such work becomes necessary.” (emphasis added). In so doing, Jeffrey seeks to have his motion to withdraw hang over the heads of complainants as a veritable ‘Sword of Damocles’, inclusive of unfettered freedom to further delay this galactically protracted case with yet additional motions and “stays” as the mood or moment may strike Jeffrey or his client, Hitrinov. Needless to say, the foregoing creates an untenable scenario which cannot possibly be allowed to lie.

Jeffrey's and Hitrinov's Specious Lies Regarding the Nature of Their Relationship

It is respectfully submitted that Hitrinov and Jeffrey have knowingly made false representations to the Presiding Officer and the Commission regarding the nature of their relationship.

Needless to say, it is of no concern whatsoever to complainants how, when, whether, or *if* Hitrinov pays his bills with Jeffrey and his firm. That said, it is respectfully submitted that it requires a “willing suspension of disbelief” for the Presiding Officer to reasonably conclude that the representation that Hitrinov and Jeffrey have been working industriously to rekindle their affections for one another, as anything but a complete sham and a deceitful act of fraud.

Clearly, the contrived ‘estrangement’ of Hitrinov and Jeffrey is unmasked as yet another effort to unreasonably stall and delay expeditious litigation of this matter for no other reason than to harass, intimidate and annoy complainants and their counsel, and to at all costs prevent complainants from having their day in Court.

Were the Presiding Officer to deign to grant respondents a “second bite at the apple” in the form of their latest motion (having not yet even ruled on respondents’ *prior* motion seeking an extension of time to a date which has now come and gone), it is respectfully submitted that this would constitute granting respondents a *four-month* extension on a purported motion for Jeffrey and his firm to be relieved as counsel, the alleged necessity for which eludes presentation.

In sum, and by their latest filing Jeffrey and Hitrinov continue to seek to “game” the Presiding Officer and the Commission upon incredible, unbelievable, and undeniably false pretenses.

It is respectfully submitted that an infinitely more appropriate remedy would be for Jeffrey and his allegedly estranged client, Hitrinov to now withdraw both Jeffrey’s underlying motion to be relieved as well as the multiple individual and “joint” motions of the respondents for an

extension while they resolve their legal ‘domestic difficulties’, without prejudice and with leave to renew “if necessary”. It is further respectfully submitted that not only does the foregoing proposal obviate the need to rewrite the RPP ‘in Jeffrey’s own graven image’, but rather additionally provides a more greatly simplified procedural posture, and one which additionally obviates further undue prejudice to complainants in the form of unwarranted additional delays, and one which will allow orderly and expeditious resumption of the discovery process while Jeffrey and Hitrinov collectively contemplate their legal and financial navels.

Avoiding Additional Delay Must Trump the Personal Conveniences of Jeffrey and Hitrinov

It is difficult if not impossible to assemble verbiage which fairly and accurately describes the breathtaking arrogance of Jeffrey and Hitrinov, who place their own personal conveniences and “travel plans” over the near fatal delays, prejudice and detriment which have inured to complainants herein through Jeffrey’s continuing placement of his personal (and now those of his client Hitrinov) and other legal matters in which he is engaged over the case at bar. Least the Presiding Officer forget, such contrivances included the *despicable* act of Jeffrey having abused the otherwise inviolate excuse of the death of a family member in order to unnecessarily delay proceedings herein, while simultaneously finding time to appear in other matters and engage in other work. It is respectfully submitted that the time for the Presiding Officer to cut off further abuses of the discovery process by Jeffrey and his estranged client, Hitrinov, is *now*.

The Presiding Officer is particularly asked to note the number of instances wherein Jeffrey has repeatedly and unabashedly given priority to numerous vacations and other personal travel, alleged other business matters, unrelated cases, and gross abuse of his otherwise inviolate excuse of the death of a family member, now culminating in a self-described trip to China and a wholly unexplained need for an additional sixty days beyond Jeffrey’s return from said alleged trip on the

entirely spurious stated basis of attempts by Jeffrey and Hitrinov to resolve their domestic difficulties, all to complainants' continuing detriment and prejudice.

To that end, it is further respectfully submitted that the "joint" proposal of Jeffrey and Hitrinov for a ninety (90) day "adjournment" of the time within which for Hitrinov to respond to Jeffery's motion, let alone the additional delay before said motion would be returnable is unreasonable, unjust, untenable, and must be denied in its entirety, with prejudice.

CONCLUSION

It is respectfully submitted that in filing their instant "joint" motion, Jeffrey and his estranged client, Hitrinov have violated with impunity, and otherwise sought to rewrite the RPP to their own unjust and unfair advantage.

It is further respectfully submitted that neither Jeffrey nor Hitrinov have proffered *any* reasonable explanation *whatsoever* as to *why* it is necessary to further delay litigation of this matter by an additional ninety (90) days to plaintiffs' undeniable prejudice and detriment, or as to what prejudice could possibly inure to respondents by the withdrawal of Jeffrey's motion for leave to withdraw as counsel for respondents, without prejudice and with leave to renew, should Jeffrey and Hitrinov be unable to resolve the legal equivalent of a 'marital squabble'.

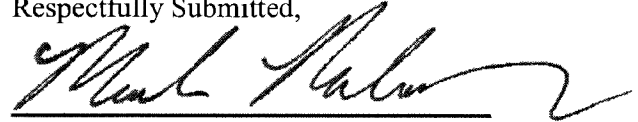
In closing, and least Jeffrey continue to violate the RPP with impunity by wrongfully attempting to interpose a reply to complainants' instant response it is respectfully submitted that as a non-dispositive motion that neither Jeffrey nor his client, Hitrinov may interpose a reply absent leave of the Presiding Officer to do so.

Based upon the foregoing, together with the arguments set forth above, it is respectfully submitted that the Presiding Officer should (1) deny *both* the first and second "joint" requests of Jeffrey and Hitrinov for further adjournment of Jeffery's pending motion; (2) deem the right of respondent, Hitrinov (or his estranged attorney Jeffrey on Hitrinov's behalf) to ask for an extension

of time to respond to Jeffery's Motion to Withdraw as having been *waived*; (3) denying the attempt by Hitrinov and Jeffrey to have Hitrinov unilaterally file a motion *on his own sole behalf*, while simultaneously averring same to be a supposed "joint" motion with his attorney, Jeffrey by virtue of alleged "authority" extended by Jeffrey, the convoluted nature of which defies all logic and reason, as well as any and all of the applicable RPP; (4) render a decision on Jeffery's Motion to Withdraw based upon the original submissions filed with the Presiding Officer and disregarding the duplicative motions for further extensions subsequently filed thereon; and (5) grant complainants such other and further relief as the Presiding Officer may deem just and proper under the circumstance.

Dated: January 18, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

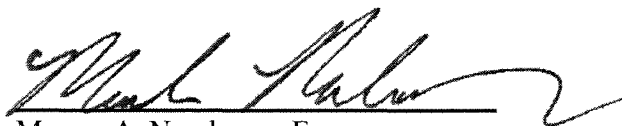
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS' SECOND JOINT MOTION FOR A FURTHER EXTENSION OF TIME TO WITHDRAW and APPENDIX** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: January 18, 2017 in Brooklyn, New York.

Appendix C

Jeffrey, Eric

From: Jeffrey, Eric
Sent: Saturday, January 14, 2017 5:37 AM
To: Marcus Nussbaum
Cc: secretary@fmc.gov; judges@fmc.gov
Subject: Re: Consolidated Dockets 15-11 and 1953(I)

Dear Mr. Nussbaum

I am about 13 time zones away. I did not file anything today. I believe Mr. Hitronov may have done so with my consent. I hereby consent to any additional time to respond that you may reasonably need.

Best regards.

Eric

Sent from my iPhone

On Jan 14, 2017, at 6:48 AM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Mr. Jeffrey,

I am in receipt of an email indicating that a Joint Motion made by your client, Hitrinov and your firm was purportedly filed with the Commission this date; however, no motion papers were attached thereto.

To the extent that you and your client have in fact filed such a joint motion it is hereby demanded that you forthwith serve a copy of same upon this office in the same manner as that by which said motion was filed with the Commission.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

This message is intended only for the use of the individual or entity to which it is addressed, and may contain information that is confidential and may be subject to attorney client privilege. If the reader of this message is not the intended recipient, any dissemination, distribution or copying of this communication is prohibited. If you received this message in error, please delete and/or notify the sender by return e-mail. Although our company attempts to sweep e-mail and attachments for viruses, it does not guarantee that either are virus-free and accepts no liability for any damage sustained as a result of viruses. Thank you.

IRS Circular 230 Disclosure: To ensure compliance with U.S. Treasury regulations we inform you that any U.S. tax advice contained in this communication (including any attachments or enclosures) is not intended or written to be used, and cannot be used, for the purpose of (i) avoiding penalties under the Internal Revenue Code, or (ii) promoting, marketing or recommending to another party any matters addressed herein.

On Fri, Jan 13, 2017 at 4:04 PM, Michael Hitrinov <Michael@eulines.com> wrote:

- > Dear Secretary,
- > Enclosed for filing is Respondents' and Nixon Peabody's Joint Motion for Further Extension of Time Regarding Motion to Withdraw. The original and five (5) copies identical to the attached will follow by mail.
- >
- > A courtesy copy to the Presiding Officer and electronic copy to Counsel for the Complainants is included herewith.
- > If you have any questions, please do not hesitate to contact me.
- > Best regards,
- >
- > Michael Hitrinov

Appendix D

Jeffrey, Eric

From: Jeffrey, Eric
Sent: Thursday, January 19, 2017 1:48 AM
To: Marcus Nussbaum
Subject: Re: FMC Docket Nos.: 15-11 and 1953(I)

Dear Mr. Nussbaum

You question several times in your motion in the form of a reply whether I authorized the filing of the recent joint motion. But you know full well that I did, as I told you so directly by an email that also went to the Presiding Officer and the Office of Secretary (whom you improperly copied).

I ask that you retract or correct these mis-statements before my return to the office on Monday, January 23. Otherwise, I anticipate asking the Commission to include it in their their current review of your ethics on exceptions. I will ignore the other blatant lies, for now.

Best regards.

Eric

Sent from my iPhone

> On Jan 19, 2017, at 11:05 AM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:
>
> Dear Secretary of the Federal Maritime Commission,
>
> I represent the Complainants in the above referenced matter.
>
> Attached please find COMPLAINANTS' RESPONSE TO RESPONDENTS' SECOND JOINT MOTION FOR A FURTHER EXTENSION OF TIME TO WITHDRAW, and Appendix thereto.
>
> Counsel for the respondents have been served herewith by email and via first class mail.
>
> The original and five copies are being mailed to your office under separate cover.
>
> Regards,
>
> Marcus A. Nussbaum, Esq.
> P.O. Box 245599

> Brooklyn, NY 11224

> Tel: 888-426-4370

> Fax: 347-572-0439

> <http://www.nussbaumlawfirm.com/>

>

>

> This message is intended only for the use of the individual or entity to which it is addressed, and may contain information that is confidential and may be subject to attorney client privilege. If the reader of this message is not the intended recipient, any dissemination, distribution or copying of this communication is prohibited. If you received this message in error, please delete and/or notify the sender by return e-mail. Although our company attempts to sweep e-mail and attachments for viruses, it does not guarantee that either are virus-free and accepts no liability for any damage sustained as a result of viruses. Thank you.

>

> IRS Circular 230 Disclosure: To ensure compliance with U.S. Treasury regulations we inform you that any U.S. tax advice contained in this communication (including any attachments or enclosures) is not intended or written to be used, and cannot be used, for the purpose of (i) avoiding penalties under the Internal Revenue Code, or (ii) promoting, marketing or recommending to another party any matters addressed herein.

>

> <Appendix to Complainants Response to Joint Motion for Further Extension of Time Regarding Motion to Withdraw.pdf>

> <Complainants Response to Joint Motion for Further Extension of Time Regarding Motion to Withdraw.pdf>

Appendix E

Jeffrey, Eric

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Thursday, January 19, 2017 7:48 AM
To: Jeffrey, Eric
Subject: FMC Docket Nos.: 15-11 and 1953(I)

Mr. Jeffrey,

I am in receipt of yours of 1:48 a.m. this date, which typically merits little response. I will no longer respond to your continuing gross and delusional mischaracterizations of complainants' filings in this matter.

While "blatant lies" are something with which you and your client (ex-client ?) are demonstrably well familiar with, the idea of you criticizing anyone by reason of an alleged lack of "ethics" would be laughable if it wasn't so tragic, as the concept of "ethics" is something of which you are both totally unfamiliar with.

Needless to say, you are advised that complainants decline to retract or "correct" any portion of their response to your clients' latest duplicative motion, as no such retraction or "correction" is required.

As is your wont you are, as always, free to take any actions you deem appropriate, regardless of how misguided or unethical such actions may be, or how many Rules of Procedure said actions may violate. In the interim, kindly cease to burden the undersigned and this office with further garbage of the type to which this email responds.

In closing, don't forget to say hello to your friend and associate, Kapustin, should you elect to go see him on visiting day.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: 888-426-4370
Fax: 347-572-0439

This message is intended only for the use of the individual or entity to which it is addressed, and may contain information that is confidential and may be subject to attorney client privilege. If the reader of this message is not the intended recipient, any dissemination, distribution or copying of this communication is prohibited. If you received this message in error, please delete and/or notify the sender by return e-mail. Although our company attempts to sweep e-mail and attachments for viruses, it does not guarantee that either are virus-free and accepts no liability for any damage sustained as a result of viruses. Thank you.

IRS Circular 230 Disclosure: To ensure compliance with U.S. Treasury regulations we inform you that any U.S. tax advice contained in this communication (including any attachments or enclosures) is not intended or written to be used, and cannot be used, for the purpose of (i) avoiding penalties under the Internal Revenue Code, or (ii) promoting, marketing or recommending to another party any matters addressed herein.

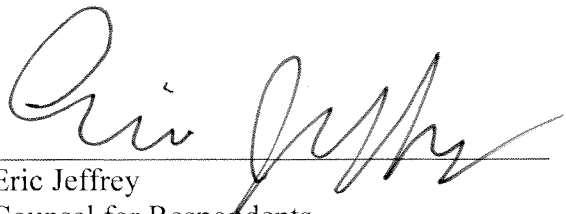
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Petition for Leave to Supplement Exceptions of Respondents' Counsel to the Presiding Officer's September 16 Decision Not to Consider Disciplinary Action Against Complainants' Counsel by first class mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: January 24, 2017


Eric Jeffrey
Counsel for Respondents